

BRIDGESCALE MASTER SERVICE AGREEMENT

STATUS — SAMPLE ONLY. v0 DRAFT.

This is a placeholder for an agreement that will be finalised by cross-border employment counsel before any party is asked to sign it.

No claim or term in this document is binding in its current form.

Counsel review status: NOT YET REVIEWED.

Reference structure informed by industry-standard tri-party fractional-talent agreements; all language is BridgeScale's own.

TRI-PARTY ENGAGEMENT FRAMEWORK

This **Master Service Agreement** ("Agreement") is entered into by:

- **BridgeScale** [Legal Entity Name, Country of Incorporation] ("BridgeScale" or the "Platform")
- [Company Legal Name, Address] ("Company")
- [Operator Legal Name, Country of Residence] ("Operator")

(each a "Party" and together the "Parties")

Effective on the date this Agreement is accepted by all three Parties (the "Effective Date").

1. STRUCTURE OF SERVICES

1.1 The Operator will provide commercial services ("Services") to the Company under one or more **Scopes of Work** ("SOW"), each of which is incorporated into this Agreement as an addendum.

1.2 BridgeScale facilitates matching, contracting, payments, and compliance for the Parties. BridgeScale is not a party to the commercial work itself; the Services are delivered by the Operator to the Company.

1.3 Services are provided through one of three BridgeScale service lanes — **Fractional Leadership**, **Fractional BD / Partnerships**, or **Fractional Execution / Operations** — as identified in the relevant SOW.

1.4 The Operator may, with prior written notice to the Company, engage subcontractors to support delivery of the Services. The Operator remains responsible for the work, except where failures arise from gross negligence or wilful misconduct by a subcontractor.

2. RELATIONSHIP OF THE PARTIES

2.1 The Operator is an **independent contractor** in relation to the Company and BridgeScale.

2.2 Nothing in this Agreement creates an employer-employee relationship, partnership, or joint venture, except where a SOW expressly arranges for the Operator to be employed through an Employer-of-Record ("EOR") partner identified by BridgeScale.

2.3 The Operator is responsible for tax filings in their country of residence, except where an EOR partner is engaged for that purpose.

2.4 BridgeScale will issue applicable annual tax forms (for example, US Form 1099-NEC for US-resident Operators) in accordance with the applicable jurisdiction's requirements.

2.5 The Operator is not entitled to participate in benefit programmes maintained by the Company or BridgeScale.

3. PAYMENTS, PLATFORM FEE, AND EOR PASS-THROUGH

3.1 The Company pays all amounts due to the Operator through BridgeScale's payment infrastructure.

3.2 The Company pays BridgeScale a **platform fee equal to ten percent (10%)** of the amounts payable to the Operator under any SOW under this Agreement. *[Placeholder rate — to be confirmed by Founder + Finance.]* The platform fee is **in addition to** the Operator's stated fee and **does not reduce** the amount the Operator receives.

3.3 BridgeScale disburses Operator payouts via: (a) ACH (United States) — through BridgeScale's US payment partner; (b) Wise or local rails — for non-US corridors; (c) Razorpay — for INR payouts to Indian-resident Operators or to Indian bank accounts of non-resident Operators (NRE / NRO) where applicable; (d) An EOR partner — where the SOW designates EOR-based delivery.

3.4 Standard ACH and equivalent corridor timing is **3–5 business days**. Each SOW notes payment due dates accordingly.

3.5 Where a SOW requires an EOR (per Section 5 of the relevant SOW), the EOR partner's monthly fee is **charged through to the Company at cost**, as a separate line item on the Company's invoice. BridgeScale does not mark up or absorb the EOR fee.

3.6 The currency of payment to the Operator is recorded in each SOW. The applicable foreign-exchange rate is fixed at the date of SOW signing. *[FX-drift absorption policy to be confirmed by Finance.]*

4. INTELLECTUAL PROPERTY

4.1 **Work Product.** All deliverables, inventions, processes, works of authorship, and other outputs created by the Operator specifically for the Company under any SOW ("Work Product") are owned exclusively by the Company upon full payment of the amounts due under the SOW.

4.2 **Operator Tools.** Pre-existing frameworks, methodologies, templates, or tools developed by the Operator independently of, or prior to, any engagement under this Agreement ("Operator Tools") remain the sole property of the Operator. The Operator grants the Company a non-exclusive, royalty-free licence to use Operator Tools to the extent necessary to use the Work Product.

4.3 The Operator will, on the Company's reasonable request, take any actions necessary to evidence, perfect, or enforce the Company's rights under Section 4.1.

4.4 Any intellectual property developed by the Operator for any third party (whether during the term of this Agreement or otherwise) is not, by virtue of this Agreement, owned by or licensed to the Company.

5. FULL-TIME HIRE CONVERSION FEE

5.1 If, during the term of this Agreement or within **twelve (12) months** after the end of any SOW under this Agreement, the Company directly hires the Operator as a full-time employee or otherwise engages the Operator outside the Platform on a full-time-equivalent basis, the Company will pay BridgeScale a **conversion fee equal to twenty-five percent (25%)** of the Operator's first-year annualised cash compensation. *[Placeholder rate — to be confirmed by Founder + Legal.]*

5.2 The conversion fee is invoiced by BridgeScale within ninety (90) days of the start of the Operator's full-time engagement, and is due within thirty (30) days of invoice.

5.3 The Company will notify BridgeScale in writing within fourteen (14) days of any agreement to engage the Operator outside the Platform that may give rise to a conversion fee under this Section 5.

6. NON-SOLICITATION AND NON-CIRCUMVENTION

6.1 **Non-Solicitation.** During the term of this Agreement and for **twelve (12) months** thereafter, neither the Company nor the Operator will solicit, recruit, or attempt to engage any other customer, operator, or employee of BridgeScale outside the Platform without BridgeScale's prior written consent.

6.2 **Non-Circumvention.** The Company and the Operator will not engage each other for paid commercial work outside the Platform without BridgeScale's prior written consent. A violation of this Section 6.2 entitles BridgeScale to recover the platform fees that would have been due, and to pursue equitable remedies. *[Note for counsel: enforceability of 12-month non-circumvention varies by jurisdiction — Indian and Californian law may require modification.]*

7. CONFIDENTIALITY

7.1 Each Party will treat as confidential all proprietary information, business strategies, pricing, customer data, and other materials disclosed by another Party under this Agreement, and will use such information only as

necessary to perform its obligations under this Agreement and any SOW.

7.2 The obligations of this Section 7 do not apply to information that: (a) is publicly available at the time of disclosure or becomes publicly available through no act or omission of the receiving Party; (b) is disclosed to the receiving Party by a third party not bound by a duty of confidentiality; (c) is independently developed by the receiving Party without reference to confidential information; or (d) is required to be disclosed by court order or applicable law, provided the receiving Party gives the disclosing Party reasonable notice and an opportunity to oppose disclosure.

7.3 The obligations of this Section 7 survive termination of this Agreement for a period of **three (3) years**.

8. TERM AND TERMINATION

8.1 This Agreement remains in effect from the Effective Date until terminated under this Section 8.

8.2 Any Party may terminate this Agreement on **thirty (30) days written notice** to the other Parties. Termination of this Agreement does not, of itself, terminate any SOW; SOW-level termination is governed by the relevant SOW.

8.3 Any Party may terminate this Agreement immediately for cause if another Party: (a) materially breaches this Agreement and does not cure within fifteen (15) days of written notice; (b) becomes insolvent or files for bankruptcy or makes a general assignment for the benefit of creditors; (c) is dissolved or ceases to operate.

8.4 Sections 4 (Intellectual Property), 5 (Conversion Fee), 6 (Non-Solicitation and Non-Circumvention), and 7 (Confidentiality) survive termination of this Agreement.

9. LIMITATION OF LIABILITY

9.1 Each Party's liability under this Agreement is limited to direct damages, capped at the total fees paid under this Agreement in the twelve (12) months preceding the claim.

9.2 In no event will any Party be liable for indirect, incidental, consequential, special, or punitive damages, including lost profits or lost business opportunities.

9.3 BridgeScale is not liable for the acts or omissions of the Company or the Operator, including but not limited to failure to perform under any SOW.

10. CASE STUDIES AND TRADEMARKS

10.1 With the Company's prior written consent (which may be withheld in the Company's sole discretion), the Operator may, for marketing, sales, or educational purposes, name the Company in case studies and reference

materials describing the Operator's work under any SOW.

10.2 Where consent is granted under Section 10.1, the Company grants the Operator a limited, non-exclusive, royalty-free licence to use the Company's name, designated trademarks and logos, a hyperlink to the Company's website, and a description of the general scope of work, in the form and within the boundaries that the Company stipulates.

10.3 BridgeScale may, with the Company's prior written consent, reference the engagement (without disclosing confidential commercial terms) for BridgeScale's marketing purposes.

11. GENERAL PROVISIONS

11.1 Entire Agreement. This Agreement, together with any SOW and addenda incorporated by reference, constitutes the entire agreement between the Parties on the subject matter and supersedes all prior or contemporaneous agreements or understandings.

11.2 Governing Law. This Agreement is governed by the laws of [Jurisdiction — to be confirmed by Legal — anchor candidate: India]. *[Note for counsel: BridgeScale's place of incorporation, operator and company jurisdictions, and dispute-resolution efficiency all bear on this choice.]*

11.3 Dispute Resolution. Disputes under this Agreement will be resolved by [arbitration / courts of [seat]]. *[To be confirmed by Legal.]*

11.4 Amendments. No amendment or modification is effective unless in writing and signed by all three Parties.

11.5 Severability. If any provision is held unenforceable, the remaining provisions remain in full force and effect, and the unenforceable provision is to be modified to the minimum extent necessary to make it enforceable.

11.6 Notices. Notices under this Agreement are given in writing, by email or registered post, to the addresses identified by each Party at the Effective Date.

11.7 Assignment. No Party may assign its rights or obligations under this Agreement without the prior written consent of the other Parties, except that BridgeScale may assign this Agreement to a successor entity in the context of a merger, acquisition, or reorganisation.

SIGNATURES

The Parties accept this Agreement on the date of last signature below.

BridgeScale	Company	Operator	
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Signed by: _____	Signed by: _____	Signed by: _____	
Title: _____	Title: _____	Title: _____	
Date: _____	Date: _____	Date: _____	

DRAFTER NOTES — REMOVE BEFORE LEGAL REVIEW

- **§3.2 (10% platform fee)** — placeholder rate. Confirm with Founder + Finance before counsel review.
- **§3.6 (FX-drift absorption)** — Founder direction is to absorb fully at launch; confirm Finance's view and update.
- **§5.1 (25% conversion fee)** — placeholder rate. Founder direction is the category benchmark; confirm before counsel review.
- **§6.2 (12-month non-circumvention)** — flag enforceability concerns for India and California in Section 6 itself; counsel may want jurisdiction-specific carve-outs.
- **§11.2 (Governing law)** — to be set by counsel; primary candidates are India (BridgeScale's likely place of incorporation) or a neutral jurisdiction (Singapore) for cross-border simplicity.
- **§11.3 (Dispute resolution)** — counsel to recommend arbitration vs. court; arbitration likely preferred given cross-border parties.
- **EOR pass-through (§3.5)** — confirm with Finance that "at cost" pass-through is operationally clean (the EOR partner invoices BridgeScale; BridgeScale invoices Company at the same number with no markup; verify accounting treatment).
- **Subcontractor clause (§1.4)** — kept light. Consider whether Operator should have to seek the Company's *prior written consent* for material subcontracting, vs. just notice.
- **Conversion-fee notification (§5.3)** — 14 days is a placeholder. Counsel to advise.
- **Annual tax forms (§2.4)** — list specific forms by jurisdiction in counsel's revision (W-9 / W-8BEN / 1099-NEC for US; GST/PAN for India; etc.).
- **Pre-SOW Commercial Summary** — this agreement does not reference the Pre-SOW Commercial Summary because the Summary is non-binding and sits *before* MSA signing in the flow. Counsel may want to add a note that the Summary, where shared, does not constitute a binding agreement.

End of MSA placeholder v0 DRAFT.